

The Port Of New Mangalore (Harbour Craft) Rules, 1976

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The Port Of New Mangalore (Harbour Craft) Rules, 1976

UNION OF INDIA

India

The Port Of New Mangalore (Harbour Craft) Rules, 1976

Rule THE-PORT-OF-NEW-MANGALORE-HARBOUR-CRAFT-RULES-1976 of 1976

Published on 19 July 1976

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The Port Of New Mangalore (Harbour Craft) Rules, 1976

Published vide Notification Gazette of India, 1976 , Part 2, Section 3(i), page 2119.

2027.

G.S.R. 1169, dated 19th July, 1976. - Whereas draft of the port of New Mangalore (Harbour Craft) Rules, 1975, was published as required by sub-section (2) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908) at pages 3025 to 3030 of the Gazette of India, Part II, Section 3, sub-section (i), dated the 25th October, 1975, under the Notification of the Government of India in the Ministry of Shipping and Transport (Transport Wing), No. G.S.R. 2583, dated the 26th September, 1975, inviting objections and suggestions from all persons likely to be affected thereby till the expiry of a period of sixty days from the date of publication of that notification in the Official Gazette.

And whereas the said Gazette was made available to the public on the 10th November, 1975;

And whereas no objections or suggestions have been received from the public;

Now, therefore, in exercise of the powers conferred by sub-section (1) of Sec. 6 of the said Act, the Central Government hereby makes the following rules, namely :

1.

Short title, commencement and application.

(1)

These rules may be called the Port of New Mangalore (Harbour Craft) Rules, 1976.

(2)

They shall come into force on the date of their publication in the Official Gazette.

(3)

They shall apply to the Port of New Mangalore.

2.

Definitions.

- In these rules, unless the context otherwise requires:

(a)

"Deputy Conservator", means the Deputy Conservator, Port of New Mangalore;

(b)

"Form", means a form appended to these rules;

(c)

"Harbour craft", means any catamaran plying for hire or any flat or cargo, passenger or other boat plying whether for hire or not and whether power driven or not and whether plying regularly or only occasionally or partly within and partly without the port;

(d)

"Inner harbour", means that part of the port which lies east of the baseline having a bearing of 348° 55' 00" and passing through the North Boring Mark and includes the turning basin, eastern dock arm, oil jetty and any future berths, docks dredged and developed from time to time;

(e)

"Licensed harbour craft", means any harbour craft licensed under these rules;

(f)

"Motor boat", means any power-driven harbour craft propelled wholly or in part by any form of electrical or mechanical power other than steam;

(g)

"Outer harbour", means that part of the approach channel lying west of the baseline defined above and extending up to the fairway buoy located at latitude 12° 55' 06.2"N and longitude 74° 14' 17.6" E.

(h)

"Owner", used in relation to a harbour craft includes any part owner, agent or mortgagee in possession thereof;

(i)

"Port", means the Port of New Mangalore;

(j)

"Roads", means the part of the port which lies seawards of the fairway buoy located at latitude 12° 55' 06.2" North and longitude 74° 14' 17.6" East.

(k)

"Servant", used in relation to owner includes the tindal or any boatman;

(l)

"Steam-boat", means any harbour craft propelled wholly or in part by steam power; and

(m)

"Tindal", includes any person in charge of a harbour craft.

3.

Harbour craft to be licensed.

- No person shall, whether as owner, tindal or servant, use any harbour craft to carry goods or passengers, to or from, any vessel at the port or from place to place within the port unless the harbour craft has been duly licensed under these rules and a harbour craft licensed to ply between ship and shore may also ply from place to place within the port without

a separate licence :

Provided that nothing in this rule shall apply to

(a)

any boat forming part of the equipment of a ship or a steamer;

(b)

any harbour craft maintained solely for purpose of pleasure; and

(c)

any boat belonging to the port :

Provided further that the Deputy Conservator may, if he thinks fit, require any boat or harbour craft referred to in clause (a) or Cl. (b) to be licensed under these rules.

4.

Licensing of harbour craft.

(1)

Every application for the licensing of a harbour craft under rule 3 shall be made to the Deputy Conservator in writing and shall contain the following particulars, namely:

(a)

the owner, name and address in full and if the owner is a minor, it shall contain the name and address of his guardian;

(b)

the name and address of the agent, if any, duly authorised by the owner to act on his behalf;

(c)

the name of the tindal whom the owner proposes to place in charge of the harbour craft;

(d)

the nature of the licence required, that is to say, whether it is required, for a passenger boat or for a cargo boat, or for any other purpose; and

(e)

the details of the harbour craft in respect of its measurements, gross tonnage and other relevant particulars.

(2)

On receiving an application for licence under sub-rule (1), the Deputy Conservator shall survey and measure the harbour craft, or cause it to be surveyed and measured in the presence of the owner or any person duly appointed for the purpose by such owner, and grant a licence in Form A on payment of the fees specified in rule 28 and on being satisfied that the harbour craft is seaworthy and fit for service at the port, or upon the production of a certificate in writing from the officer who surveys the harbour craft certifying

(a)

that such harbour such craft is seaworthy, properly equipped and suited for the purpose for which the licence is required;

(b)

the number of passengers that such harbour craft is capable of carrying under all conditions;

(c)

the number of crew required for the safe navigation of such harbour craft; and

(d)

that the equipment of such harbour craft is in good order and condition.

(3)

For the purposes of survey and measurement specified in sub-rule (2), the owner shall cause the harbour craft to be brought to such place as the Deputy Conservator may appoint.

(4)

Subject to the provisions of these rules, all licences in Form A shall be issued for the financial year ending on the 31st March.

5.

Minor of female owners.

(1)

If the owner of a harbour craft is a minor, the licence may be obtained by the guardian of the minor.

(2)

If the owner is a woman, who according to the customs of the country does not appear in public, the licence may be obtained on her behalf by her duly authorised agent.

Note. - In such cases the guardian or the agent, as the case may be, shall be deemed to be the owner for the purposes of these rules.

6.

Licence, rules, etc., to be produced when demanded.

(1)

The licence of every harbour craft shall be kept in the possession of the tindal who shall produce the licence whenever called upon to do so by the Deputy Conservator or by any person duly authorised by the Deputy Conservator in that behalf.

(2)

A copy of these rules and of any written directions issued by the Deputy Conservator in respect of the implementation shall also be furnished by the owner to the tindal who shall on demand, show them to any hirer or consignor of, or passenger in such harbour craft.

(3)

The owner shall be responsible for ensuring that the tindal understands the provisions of these rules and directions and for obtaining a declaration from him to that effect and producing the same whenever required by the Deputy Conservator.

7.

Distinctive numbering of licensed harbour craft.

(1)

The owner of licensed harbour craft shall paint or cause to be painted upon a black background in white or upon a light background in black English and Hindi figures not less than six inches in length, on a conspicuous part of the bow of such harbour craft on one side, and on the quarter of the other, the number of the harbour craft as mentioned in the licence.

(2)

No person shall paint or cause to be painted upon any harbour craft not duly licensed under rule 4, any such number as aforesaid or any other mark likely to induce the belief that such harbour craft has been so licensed.

8.

Change of ownership or control of licensed harbour craft.

- When the holder of a licence transfers the ownership of the harbour craft to another person the licence shall cease to be valid on the expiry of six days from the date of such transfer and where such holder mortgages the harbour craft to, or places it under the control of another person, the licence shall cease to be valid on the expiry of six days from the date of such mortgage or placing unless an endorsement on the licence is made by the Deputy Conservator to the effect that notwithstanding such transfer or placing, the licence shall continue to be valid.

9.

Changes in crew or carrying capacity of licensed harbour craft to be reported.

(1)

Whenever any alteration in a licensed harbour craft is made so as to affect any of the particulars contained in the licence granted to it, such alteration shall forthwith be reported by its owner to the Deputy Conservator :

Provided that, if such alteration takes place at a time when the harbour craft is away from the port, it may be reported immediately on the return of the harbour craft to the port.

(2)

In the case of a change of tindal or of any alteration in the harbour craft not affecting its carrying capacity the harbour craft shall not ply until such report is made and in the case of change of tindal until the tindal had also been produced before the Deputy Conservator.

(3)

On such report or on such report and production, as the case may be, the Deputy Conservator shall amend the original licence held by the owner and in the case of change of tindal, the register kept under rule 10 shall also be amended.

(4)

In the case of any alteration in the harbour craft affecting its carrying capacity, the original licence held by the owner shall be cancelled and a fresh licence shall be issued by the Deputy Conservator after the harbour craft has been re-measured, and it shall not ply until such fresh licence has been issued.

10.

Registration of tindals.

(1)

At the time of licensing of any harbour craft under rule 4, the name of its tindal as entered in the licence and other particulars relating to him shall be entered in a register which shall be kept by the Deputy Conservator in Form B.

(2)

Every year in the month of March on a date to be fixed by the Deputy Conservator the owner of every licensed harbour craft shall produce before the Deputy Conservator, the tindal of the harbour for verifying the correctness of the entries in the register :

Provided that if such harbour craft is away from the port on the date so fixed, that owner shall produce the tindal within 24 hours after its return.

(3)

No person shall be employed or registered as a tindal of a licensed harbour craft if he:

(a)

is not a certificated officer qualified to be the Master or Engineer of such harbour craft in accordance with rule 29; and

(b)

is in the opinion of the Deputy Conservator unaccustomed to the use of such harbour craft or otherwise inefficient.

11.

Annual and special inspection etc of licensed harbour craft and crew.

(1)

On or before the expiry of the licence, the owner of every licensed harbour craft shall produce it together with its licence for inspection to the Deputy Conservator at such place as he may appoint for the purpose.

(2)

In addition to the inspection referred to in sub-rule (1), special or partial inspections may be held by the Deputy Conservator at such times as the Deputy Conservator may consider necessary.

(3)

At all inspections under this rule, each harbour craft shall have its full complement of crew and equipment.

12.

Repairs of licensed harbour craft ordered for inspection.

(1)

The owner of every licensed harbour craft shall execute such repairs thereto as the Deputy Conservator may direct in order to render it efficient, and no owner or any of his persons shall use any such harbour craft or cause or permit it to be used until such repairs have been duly executed and the Deputy Conservator has granted permission for its use.

(2)

For the purpose of the repairs referred to in sub-rule (1), the owner shall cause the harbour craft to be hauled up only to such place or places on the foreshore as the Deputy Conservator may from time to time direct.

(3)

All major repairs to the boiler, machinery or hull of a licensed harbour craft shall be carried out under the supervision of an Engineer and Ship Surveyor appointed by the Deputy Conservator and the master or the owner of such craft shall before the commencement of the repairs, pay to the Deputy Conservator a sum sufficient to cover the fees and other expenses of such Engineer and Ship Surveyor.

Explanation. - For the purpose of this sub-rule, the Deputy Conservator shall decide as to whether a particular work should be regarded as a minor repair or not.

(4)

The fees referred to in sub-rule (3) shall be calculated on the following scale, namely:

Scale

Of Fees

Rs.

- (i) For every vessel the gross tonnage of which does not exceed 10 tons.
90.00
- (ii) For every vessel the gross tonnage of which exceeds 10 tons but does not exceed 25 tons.
115.00
- (iii) For every vessel the gross tonnage of which exceeds 25 tons but does not exceed 50 tons.
145.00
- (iv) For every vessel the gross tonnage of which exceeds 50 tons but does not exceed 75 tons.
175.00
- (v) For every vessel the gross tonnage of which exceeds 75 tons but does not exceed 100 tons.
205.00
- (vi) For every vessel the gross tonnage of which exceeds 100 tons but does not exceed 300 tons.
230.00
- (vii) For every vessel the gross tonnage of which exceeds 300 tons but does not exceed 600 tons.
290.00
- (viii) For every vessel the gross tonnage of which exceeds 600 tons but does not exceed 900 tons.
350.00
- (ix) For every vessel the gross tonnage of which exceeds 900 tons but does not exceed 1,200 tons.
405.00
- (x) For every vessel the gross tonnage of which exceeds 1,200 tons.
405.00
plus 60.00 tons for every 300 tons or part thereof in excess of 1,200 tons.
- (xi) For interim survey
25.00/visit.

(5)

The expenses referred to in sub-rule (3) shall be determined in accordance with the general or specific instructions of the Central Government in this behalf.

13.

Control of working of licensed harbour craft.

(1)

The owners shall provide every licensed harbour craft with such crew and equipment as may be determined by the Deputy Conservator and entered in the licence.

(2)

The tindal of the harbour craft shall not have on the board more or less than the number of the crew specified in the licence for fine or rough weather according as the harbour craft plies in fine or rough weather and shall not carry passengers or goods in excess of the number or quantity entered in the licence for the harbour craft.

(3)

Every licensed harbour craft plying within the port shall carry such number of life buoys as may be considered reasonable by the Deputy Conservator and of a type approved by him and every such harbour craft shall carry in addition, such buoyant apparatus as may be considered necessary by the Deputy Conservator.

(4)

All buoys and buoyant apparatus carried in the harbour craft shall be stowed to the satisfaction of the Deputy Conservator and so as to be readily accessible to the persons on board.

(5)

Every harbour craft licensed for the carriage of passengers shall be so fitted that sufficient sitting space is available for each passenger and awnings and side screen shall also be provided, where necessary, to give protection to passengers from sun and weather respectively.

(6)

The Deputy Conservator shall exercise his discretion in fixing the number of crew required in a licensed harbour craft plying within the port and carrying passengers.

(7)

Whether the owner of a licensed harbour craft does not desire to carry the full complement of passengers, or is not prepared or considers it impracticable to carry the prescribed life saving appliances, the Deputy Conservator may limit the number of passengers accordingly and endorse the licence to that effect.

14.

Obstructing port traffic.

(1)

No tindal or any member of the crew serving in any licensed harbour craft shall obstruct or hinder the loading, discharging or service of such harbour craft, or of any other licensed harbour craft, or obstruct or hinder any vessel working in the port.

(2)

No tindal shall permit any licensed harbour craft in his charge to obstruct the free navigation of the port or the approaches to wharves or jetties.

15.

Compliance with the provisions regarding prevention of collisions at sea-observance of the Merchant Shipping (Prevention of Collisions at Sea) Regulations, 1975.

-All licensed harbour crafts, when tinder way, shall comply with the provisions of the Merchant Shipping (Prevention of Collisions at Sea) Regulations, 1975.

16.

Refusal to ply without lawful excuse.

- If the owner or the tindal in charge of a licensed harbour craft plying regularly for hire refuses to ply for hire when required to do so without reasonable excuse, of which the Deputy Conservator shall, subject to the appeal provided in rule 27, be the sole deciding authority, the licence of such harbour craft shall be liable to be revoked.

17.

Working of the licensed harbour craft at night and in bad weather.

(1)

No licensed harbour craft shall ply in the outer roads:

(i)

between the hours of 6 p.m. and 6 a.m. without the previous permission of the Deputy Conservator; and

(ii)

when a stern warning signal indicating bad weather on high seas is displayed from the port flagstaff.

(2)

When the signal referred to in Cl. (ii) of sub-rule (1) is hoisted at the port flagstaff, all harbour crafts plying in the outer

roads shall return to the inner harbour at once and shall not proceed to the outer roads without the special permission of the Deputy Conservator until the signal is hauled down.

18.

Permissible loading of licensed harbour craft in fine and rough weather.

(1)

No person shall load a licensed harbour craft with passengers or with animals or other cargo in contravention of the terms of its licence.

(2)

No tindal of any licensed harbour craft shall permit any animal to be loaded, in it, unless the harbour craft has been provided with sand ballast or straw sufficient to form a flat floor and unless such other requirements as may be imposed by the Deputy Conservator in respect of the harbour crafts, have been complied with.

(3)

Where animals are carried in a licensed harbour craft, no other cargo or passenger shall be carried therein.

(4)

Passengers and cargo other than animals may be carried at the same time only in a licensed harbour craft propelled by mechanical or electrical power.

19.

Power of tindal to prevent overloading.

- Whenever the number of passengers or the quantity of cargo in a licensed harbour craft exceeds the number or quantity entered in the licence, the tindal shall, before starting from the vessel or from the shore, require any passenger to leave the harbour craft or any consignor, consignee or shipping or landing agent concerned to remove from the harbour craft the whole or any part of the cargo.

20.

Attention to certain signals required of tindals.

- The owner of every licensed harbour craft shall instruct the tindal of such harbour craft to pay immediate attention to the harbour craft master flag, square blue flag with four parallel red bars running crosswise which will be displayed on the port flagstaff when the Deputy Conservator desired to carry out an inspection under rule 11.

21.

Licensed harbour craft not to interfere with mooring or approaching vessels before they anchor.

-No person in charge of or navigating any licensed harbour craft shall attempt to make such harbour craft fast to any mooring or mark buoy, or take it alongside of a vessel approaching an anchorage or mooring before such vessel has come to anchor or been moored to a buoy.

22.

Fishing boats not to be allowed near a cargo boat or alongside vessel.

(1)

No person in charge of or navigating a licensed cargo boat shall allow a fishing boat to be within ten metres of her, when such cargo boat is plying between a vessel and the shore.

(2)

No person in charge of or navigating a fishing boat shall allow it to go alongside a vessel while discharging or shipping of cargo is proceeding.

(3)

If any licensed harbour craft is found by the Deputy Conservator to have contravened the provisions of sub-rule (1) or (2), the Deputy Conservator may

(a)

cancel the licence issued in respect of the harbour craft; and

(b)

direct that the tindal at fault shall not be employed in any capacity in any licensed harbour craft and that his name shall be removed from the register of tindals.

(4)

If any owner employs such tindal contrary to the directions of the Deputy Conservator, given under Cl. (b) of sub-rule (3), the Deputy Conservator, may cancel all or any of the licences held by the said owner.

23.

Landing and shipping of passengers and goods to be within the port.

- All passengers and goods shall be landed or shipped in such places within the limits of the port as the Conservator may appoint and no person shall ship or land passengers or goods outside such places unless the sanction of the port and officers of customs at the port has previously been obtained.

24.

Rates of harbour craft hire.

- No owner, tindal or any member of the crew of a licensed harbour craft licensed to carry passengers for hire and no person deputed by the owner of such harbour craft, shall demand from any passenger hire charges exceeding that sanctioned by the Central Government and no owner, tindal or member of the crew of such harbour craft shall demand or accept any gratuity or present from any passenger during the course of its trip between any vessel and the shore or from place to place whether within or without the port.

25.

Prohibition of employment of convicted tindal, etc.

- If the tindal or any member of the crew of a licensed harbour craft is convicted for a breach of any of the provisions of these rules, the owner of the harbour craft shall, on being required so to do by the Deputy Conservator, dismiss such tindal or member of the crew from his employment.

26.

Revocation of Licences.

- If, in the opinion of the Deputy Conservator, the owner of any licensed harbour craft has contravened any of the provisions of these rules, he may, without prejudice to any other action that may be taken against such owner in respect of the contravention, cancel all or any of the licences held by the owner.

27.

Appeal from Deputy Conservator's decision.

(1)

An appeal shall be from any decision of the Deputy Conservator under these rules, to the Conservator of the Port who shall decide the same.

(2)

Such appeal shall be preferred in writing within seven days from the date on which the decision of the Deputy Conservator appealed against has been communicated in writing to the party or parties concerned.

28.

Fees.

- The following fees shall be leviable for survey, licensing, inspection of the harbour crafts :

Service

rendered

Boats

other than canoes and shoe-dhonies

Canoes

and shoe-dhonies

Catamarans

Power

driven craft

Rs.

Ps.

Rs.

Ps.

Rs.

Ps.

Rs.

Ps.

1.

Issue of licence

6.00

2.00

2.00

50.00

2.

Amendment of the licence or transfer of licence in favour of another person

2.00

2.00

2.00

2.00

3.

Grant of duplicate licence when the original is lost, mislaid or rendered illegible.

3.00

2.00

2.00

2.00

4.

Registration of Tindal

2.00

2.00

2.00

2.00

5.

Amendment to registration of tindal

2.00

2.00

2.00

2.00

6.

For each survey and measurement

10.00

4.00

4.00

95.00

7.

Annual inspection

6.00

2.00

2.00

50.00

8.

Special inspections

5.00

2.00

2.00

50.00

29.

Special provisions applicable to steam boats and motor boats licensed under these rules.

(1)

Every steam boat licensed under these rules shall, while plying for hire or otherwise, have on board the following certificated officers.

(i)

if she has engines of not less than 100 N.H.P.

(a)

as her Master, a person possessing a First Class Master's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) or a Master's Certificate or Mate's Certificate of Competency granted under the Merchant Shipping Act, 1958 (

44 of 1958

) or under such regulations as the Central Government may, from time to time, specify in this behalf, and

(b)

as her Engineer, a person possessing an Engineer's Certificate granted under any of the aforesaid Acts or regulations.

(ii)

if she has engines of less than 100 N.H.P. but not less than 40 N.H.P.

(a)

as her Master, a person possessing a Second Class Master's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) or any such certificate as is referred to in sub-clause (a) of Cl. (i), and

(b)

as her Engineer, a person possessing a First Class Engine Driver's Certificate granted under the Indian Steam-vessels Act, 1917 (1 of 1917) or an Engine Driver's Certificate granted under the Merchant Shipping Act, 1958 (

44 of 1958

) or under such regulations as the Central Government may, from time to time, specify in this behalf or any such certificate as is referred to in sub-clause (b) of Cl. (i) :

Provided that a boat shall be deemed to have complied with this clause, if she has a person possessing both the certificates referred to in sub-clause (a) and sub-clause (b); and

(iii)

if she has engines of less than 40 N.H.P.-

(a)

as her Master, a person possessing a Serang's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) or any such certificate as is referred to in sub-clause (a) of Cl. (ii); and

(b)

as her Engineer, a person possessing a Second Class Engine Driver's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) or any such certificate as is referred to in sub-clause (b) of Cl. (h):

Provided that a boat shall be deemed to have complied with this clause, if she has a person possessing both the certificates referred to in sub-clause (a) and sub-clause (b).

(2)

Every motor boat licensed under these rules shall, while plying for hire or otherwise have on board the following certificated officers :

(i)

if she has engines of not less than 565 B.H.P.

(a)

as her Engineer, a person possessing a Motor Engineer's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) or a certificate as a First Class or Second Class Engineer of a Sea-going Motor Ship granted under the Merchant Shipping Act, 1958 (

44 of 1958

) or under such regulations as the Central Government may from time to time specify;

(b)

as her Master, a person possessing a First Class Master's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) or a Master's or Mate's Certificate of Competency granted under the Merchant Shipping Act, 1958 (

44 of 1958

) or under such regulations as the Central Government may from time to time specify in this behalf.

(ii)

if she has engines of less than 565 BHP but not less than 226 BHP.,-

(a)

as her Engineer, a person possessing a First Class Motor Engine Driver's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917), or a certificate of an Engine Driver of a Sea-going Motor Ship granted under the Merchant Shipping Act, 1958 (

44 of 1958

) or under such regulations as the Central Government may from time to time specify in this behalf or any such certificate as is referred to in sub-clause (a) of Cl. (i); and

(b)

in case the engines are used for propulsion, as her Master, a person possessing a Second Class Master's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917), or any such certificate as is referred to in sub-clause (b) of Cl. (i); and

(iii)

if she has engines of less than 226 BHP.

(a)

as her Engineer, a person possessing a Second Class Motor Engine Driver's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917), or any such certificate as is referred to in sub-clause (a) of Cl. (ii); and

(b)

in case the engines are used for propulsion, as her Master, a person possessing a Serang's Certificate granted under the Inland Steam-vessels Act, 1917 (1 of 1917) of any such certificate as is referred to in sub-clause (b) of Cl. (ii) :

Provided that a motor boat having engines of not more than 40 BHP may have as her Engineer, a person holding a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf :

Provided further that a motor boat having engines of not more than 20 BHP the length of which measured from the fore part of the stem to the after part of the stem post does not exceed 30 feet may have as her Master and Engineer a person possessing both the certificates referred to in sub-clause (a) and sub-clause (b) :

Provided also that a motor boat having engines of not more than 20 BHP the length of which measures as aforesaid does not exceed 30 feet, which is used exclusively for personal recreation by the owner or his family or friends need not carry a certificated Master or Engineer but may be navigated by the owner or any other person possessing a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf.

(3)

Any person who has served as Master, Serang, Engineer or Engine Driver of a steam boat or motor boat plying in a port for a period of two years on the 1st January, 1976 but is not in possession of the certificate of competency required under sub-rule (1) or sub-rule (2), as the case may be, may be granted, in the case of the Master or Serang by the Deputy Conservator and in the case of Engineer or Engine Driver by the Superintendent Mechanical, a certificate to the effect that he is, by reason of his having so served competent to act as Master, Serang, Engineer or Engine Driver as the case may be, on board such steam boat or motor boat while plying in the port without examination on payment of the fees set out below :

Rs.

First-Class

Master's Certificate

16.00

Second-Class

Master's Certificate

6.00

Serang's

Certificate

4.00

Second-Class

Engine Driver's or Second Class Motor Engine Driver's Certificate

4.00

First-Class Engine

Driver's or First Class Motor

Engine Driver's

Certificate

10.00

Engineer's or

Motor Engineer's Certificate

12.00

(4)

The Central Government may, in special circumstances-

(a)

exempt any class of steam boats or motor boats from the requirement of sub-rule (1) or sub-rule (2), as the case may be; and

(b)

lay down the qualifications required for the officers employed on such boats.

30.

Fire extinguishing equipment and silencers, etc.

(1)

Every motor boat licensed under these rules shall be provided with a sand box and an approved patent fire extinguisher of suitable capacity for extinguishing fire and the owner shall keep it free from oil refuse.

(2)

Noisy engines of all motor boats licensed under these rules while plying within the Port shall be fitted with efficient silencers.

31.

Sinking of licensed harbour craft.

- The owner of any licensed harbour craft which has been sunk within the port area shall forthwith report the fact of such sinking and the place where it occurred to the Deputy Conservator.

Form A

[See rule 4 (2)]

Licence No.

Licence granted toowner of boat measuring.....feet long.....feet board.....feet deepregistered tons, to carry cargo (other than animals) and/or passengers, animals to the extent specified below, to and from ships at or off the port of New Mangalore under the restrictions and subject to the penalties laid down in the port of New Mangalore (Harbour Craft) Rules, 1976.

Date

of Registry

Name,

number and description of Harbour Craft

Hig.

and equipment

When

built and where

When

repaired last and in what condition

Cargo

without passengers

Number

of animals and and presumed weight

Weight

of cargo other than animals

1

2

3

4

5

6

7

In

fine weather, In rough weather

In

fine weather In rough weather

Date

:

Note.- Two children under 12 years of age=1 adult.

Deputy

Conservator

Number

of passengers without cargo

Number

of crew

Particulars

respecting the owner or owners of the boat

Particulars

respecting tindal of the boat

Period

for which the licence is to be in force

Remarks

Names

or Names

Occupation,

place or places of residence

Name

Place

of residence

8

9

10

11

12

13

14,

15

In

fine weather

In

fine weather

Tindal

Lascars

In

rough weather

In
rough weather
Tindal
Lascars.
Deputy
Conservator.
Extended
to
Ditto
Ditto
Ditto
Ditto
Ditto
Ditto
Ditto
Ditto
Ditto
Endorsement
for change of Tindal
Form B
[See rule 10]
Register showing the names, ages, places of residence and signature/thumb impression of tindals employed in the port
of New Mangalore for the year 19
S.
No.
Date
of Registry
Number
of Harbour craft
Name
Age
Years
Months
Days
1
2
3
4
5
6
7
Place
of Residence
Signature/Thumb
impression (in case of illiterate)
Remarks
8
9
10
Related AI tags, queries and research notes
Translation